Affidavit of facts: incorrect assignment of title or certificate of origin

Purpose: This form voids the incorrect assignment of a certificate of title or manufacturer's certificate of origin.
All parties involved in the incorrect assignment (seller, buyer, and lien holder, if applicable) must complete this form.

Part 1: SELLER(s) information

Full legal name(s) of seller(s): (First, middle, last, suffix) _____

Address of seller(s): Street address, city, state, ZIP _____

Part 2: BUYER(s) information

Full legal name(s) of buyer(s) (First, middle, last, suffix) _____

Address of buyer(s): Street address, city, state, ZIP _____

Part 3: Vehicle information

Part 3a: Incorrectly assigned vehicle. *Describe the vehicle that was incorrectly assigned. NCDMV will void the assignment of this vehicle.*

Year _____ Make _____ Model _____ Vehicle Identification Number (VIN) _____ Title number assigned, if known _____

Part 3b: Vehicle delivered to buyer(s), if applicable. *Leave blank if no vehicle was delivered. If the seller(s) delivered a different vehicle, describe it here.*

Year _____ Make _____ Model _____ Vehicle Identification Number (VIN) _____

Part 4: Attestations. All applicable attestations (seller, buyer, and lien holder, if applicable) must be completed and notarized.

SELLER(s) affidavit and notarization. Complete in the presence of a notary. Check the boxes next to all the statements that apply.

☐ I/we did not sell or deliver the incorrectly assigned vehicle, listed in Part 3a, to the buyer(s).
☐ I/we sold or delivered a different vehicle, listed in Part 3b, to the buyer(s). (Do not check this box if Part 3b is blank.)

Signature(s) of seller(s) or authorized representative _____ Date _____

Notary: I certify that the person(s) personally appeared before me this day, acknowledging to me that he or she voluntarily signed this application for the purpose stated therein and, in the capacity, indicated. **Name(s) of principal(s):** _____

Notary signature _____ Date _____ County _____ State _____

Notary printed name _____ Commission expires _____

Seal

BUYER(s) affidavit and notarization. Complete in the presence of a notary. Check the boxes next to all statements that apply.

☐ I/we did not purchase or take delivery of the incorrectly assigned vehicle listed in Part 3a. The title or certificate of origin was incorrectly assigned.
☐ I/we did purchase or take delivery of a different vehicle, listed in Part 3b, from the seller(s). (Do not check this box if Part 3b is blank.)

Signature(s) of buyer(s) _____ Date _____

Notary: I certify that the person(s) personally appeared before me this day, acknowledging to me that he or she voluntarily signed this application for the purpose stated therein and, in the capacity, indicated. **Name(s) of principal(s):** _____

Notary signature _____ Date _____ County _____ State _____

Notary printed name _____ Commission expires _____

Seal

STOP Only complete Part 5 if a lien is listed on the incorrectly assigned title or there is a lien on the vehicle listed in Part 3b. Lien holder completes Part 5. STOP

Part 5: LIEN HOLDER information and attestation

Print name of lien holder _____

Address of lien holder: Street address, city, state, ZIP _____

LIEN HOLDER affidavit and notarization Complete in the presence of a notary. Check the boxes next to all statements that apply.

☐ We hold no interest whatsoever in the incorrectly assigned vehicle listed in Part 3a. The title or certificate of origin was incorrectly assigned.
☐ We do hold a security agreement on a different vehicle, listed in Part 3b. (Do not check this box if Part 3b is blank.)

Print name of lien holder _____ Signature of lien holder authorized representative _____ Date _____

Notary: I certify that the person(s) personally appeared before me this day, acknowledging to me that he or she voluntarily signed this application for the purpose stated therein and, in the capacity, indicated. **Name(s) of principal(s):** _____

Notary signature _____ Date _____ County _____ State _____

Notary printed name _____ Commission expires _____

Seal